

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TAIKUAN PERKINS, and DAWN PERRY,

Plaintiffs,

- versus -

CITY OF NEW YORK, NEW YORK CITY POLICE,
DEPARTMENT, POLICE OFFICER LIEUTENANT
FNU CHEI, POLICE OFFICER FNU FERNANDEZ,
POLICE OFFICER "JOHN DOE 1" Tax No.
97129, POLICE OFFICER "JOHN DOE 2" Tax
No. 946905, POLICE OFFICERS JOHN DOES 3
thru 7 Currently Unknown Employees of
the NEW YORK CITY POLICE DEPARTMENT
DEPARTMENT,

Individually and Jointly.

Index No. _____/2024

SUMMONS and
VERIFIED COMPLAINT

Plaintiffs Demand
Jury Trial

Plaintiffs Designate
New York County as
Place of Trial
Venue Based on Place
of Occurrence, CPLR
§ 503(a)

YOU ARE HEREBY SUMMONED, to answer this Verified
Complaint in this action and to serve a copy of your answer,
or, if the complaint is not served with this summons to serve
a Notice of Appearance, on the Plaintiffs' Attorney within 20
days after the service of this summons, exclusive of the day
of service (or within 30 days after the service is complete
if this summons is not personally delivered to you within the
State of New York); and in case of your failure to appear or
answer, judgment will be taken against you by default for the
relief demanded in the complaint.

1 The causes of action herein include, but are not limited
2 to, conversion, false arrest, false imprisonment, trespass,
3 violation of plaintiffs' civil rights, negligent infliction
4 of emotional distress, and such other causes of action as the
5 pleadings herein set forth.

6 Plaintiff seeks both compensatory and exemplary damages
7 of an unspecified amount in excess of fifty thousand dollars
8 (\$50,000.00) from the named Defendants, both jointly and
9 severally, for all reasonable attorney fees and costs and
10 disbursements, and for equitable relief.

11
12 By: Law Office of Bernard V. Kleinman,
13 PLLC
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17 Dated: March 13, 2024
18 Somers, NY

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**Bernard
Kleinman**

Digitally signed by Bernard
Kleinman
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Date: 2024.03.13 15:33:27 -04'00'

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PERRY
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New York, NY 10007

New York City Police Department

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Page 2

1 c/o Law Department of the City of New York
2 100 Church Street
3 New York, NY 10007
4
5 Lt. FNU CHEI
6 Police Service Area 6
7 2770 Frederick Douglass Boulevard
8 New York, NY 10039
9
10 Policed Officer FNU FERNANDEZ
11 Police Service Area 6
12 2770 Frederick Douglass Boulevard
13 New York, NY 10039
14
15 POLICE OFFICER "JOHN DOE" Tax No. 971929
16 Police Service Area 6
17 2770 Frederick Douglass Boulevard
18 New York, NY 10039
19
20 POLICE OFFICER "JOHN DOE" Tax No. 946905
21 Police Service Area 6
22 2770 Frederick Douglass Boulevard
23 New York, NY 10039
24
25 POLICE OFFICERS 1 thru 7
26 Police Service Area 6
27 2770 Frederick Douglass Boulevard
28 New York, NY 10039
29
30

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thru 7 Currently Unknown Employees of
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DEPARTMENT,

Individually and Jointly.

Index No. _____/2024

VERIFIED COMPLAINT

The Plaintiffs, TAIKUAN PERKINS, and DAWN PERRY, by and
through their attorney of record, Bernard V. Kleinman, Esq.,
of the Law Office of Bernard V. Kleinman, PLLC, for their
Verified Complaint against the named Defendants, Jointly and
Severally, do allege the following,

THE PARTIES

1. Plaintiff TAIKUAN PERKINS (hereinafter referred to as
"PERKINS"), for all times relevant herein, is a resident of
the State of New York, residing in and for the County of New
York, City of New York.

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Somers, NY 10589-2305

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1 2. Plaintiff DAWN PERRY (hereinafter referred to as
2 "PERRY"), for all times relevant herein, is a resident of the
3 State of New York, residing in and for the County of New York,
4 City of New York.

5 3. At all relevant times mentioned herein, Defendant
6 City of New York ("New York City"), was and is a municipal
7 corporation duly organized and existing under, and by virtue
8 of, the laws of the State of New York and acts by and through
9 its agencies, employees and agents, including, but not
10 limited to, the New York City Police Department ("NYPD"), and
11 their employees.

12 4. At all relevant times mentioned herein, Defendant New
13 York City Police Department (hereinafter "NYPD") is the
14 Defendant New York City agency responsible for the training
15 and supervision of all members of the aforesaid agency NYPD,
16 and is responsible for all actions of said agency's employees
17 and personnel, including, all officers of the NYPD, and the
18 named officers herein.

19 5. At all times hereinafter mentioned, Defendant, POLICE
20 OFFICER LIEUTENANT FNU CHEI, was an adult male employed by
21 the City of New York as a member of the NYPD assigned to
22 Police Service Area 6, and is sued herein in his official and
23 individual capacities.

1 6. At all times hereinafter mentioned, Defendant, POLICE
2 OFFICER FNU FERNANDEZ, was an adult female employed by the
3 City of New York as a member of the NYPD assigned to Police
4 Service Area 6, and is sued herein in her official and
5 individual capacities.

6 7. At all times hereinafter mentioned, Defendant POLICE
7 OFFICER "JOHN DOE 1" Tax No. 971929, was an adult male
8 employed by the City of New York as a member of the NYPD
9 assigned to Police Service Area 6, and is sued herein in his
10 official and individual capacities.

11 8. At all times hereinafter mentioned, Defendant POLICE
12 OFFICER "JOHN DOE 2" Tax No. 946905, was an adult male
13 employed by the City of New York as a member of the NYPD
14 assigned to Police Service Area 6, and is sued herein in his
15 official and individual capacities.

16 9. At all times hereinafter mentioned, Defendants, POLICE
17 OFFICERS JOHN DOES 3 thru 7, were adult males employed by the
18 City of New York as members of the NYPD assigned to Police
19 Service Area 6 whose names are currently unknown to the
20 Plaintiff. Said Defendants, POLICE OFFICERS JOHN DOES 3 thru
21 7 are sued herein in their official and individual capacities.

JURISDICTION & VENUE

10. Plaintiffs repeat and re-iterate ¶¶ 1 through 9 inclusive as if set forth herein.

11. Plaintiff PERKINS was at all times relevant herein, a lawful resident in and for the City of New York, County of New York.

12. Plaintiff PERRY was at all times relevant herein, a lawful resident in and for the City of New York, County of New York.

13. At all times relevant herein, the events herein occurred in and for the City of New York, County of New York. CPLR § 503(a).

14. On or about July 31, 2023, a Notice of Claim, pursuant to General Municipal L. § 50-e, on behalf of Plaintiff PERKINS, was served upon the City of New York, regarding the incident as set forth below, that occurred on May 16, 2023.

15. On or about July 31, 2023, a Notice of Claim, pursuant to General Municipal L. § 50-e, on behalf of Plaintiff PERRY, was served upon the City of New York, regarding the incident as set forth below, that occurred on May 16, 2023.

16. On or about December 19, 2023, an examination, pursuant to General Municipal L. § 50-h, was conducted, on half of the Defendant City of New York, of Plaintiff PERKINS.

1 17. On or about December 19, 2023, an examination, pursuant
2 to General Municipal L. § 50-h, was conducted, on half of the
3 Defendant City of New York, of Plaintiff PERRY.

4 18. This action arises both under the United States
5 Constitution, particularly under provisions of the Fourth and
6 Fourteenth Amendments to the Constitution of the United
7 States, and under federal law, particularly the Civil Rights
8 Acts, Title 42 of the United Code, Section 1983, *et seq.* and
9 state law for, among other torts, conversion, malicious
10 mischief, false arrest, destruction of personal property,
11 infliction of emotional distress, negligent hiring, training,
12 and supervision of police officers, permitting unlawful
13 police practices to name a few of the causes of action.

14 19. Since that date Defendant City of New York and other
15 Defendants and said Defendants have neglected to or refused
16 to make any adjustments or payment thereof; hence, this action
17 is commenced within one year and 90 days after the cause of
18 action arose.

19 **ALLEGATIONS**

20 20. Plaintiffs repeat and re-iterate ¶¶ 1 through 19 as if
21 set forth herein.

1 21. On May 16, 2023 Plaintiff PERKINS was lawfully staying
2 in the apartment located at 2931 Frederick Douglas Boulevard,
3 Apartment 14F, New York, NY 10039.

4 22. This apartment was leased to the Plaintiff, PERRY, who
5 resided there with her teenage daughter.

6 23. Hearing a banging on the apartment door PERKINS got
7 up, dressed only in a pair of boxer shorts and a t-shirt, no
8 shoes, and looked through the peephole, and observed a number
9 of officers (approximately four or five) of the Defendant
10 City of New York, NYPD, identified as Defendant Chei,
11 Defendant Fernandez, and Defendants John Does 1 thru 7.

12 24. Several of these officers appeared to be armed with
13 automatic weapons; all of whom were in civilian clothing, and
14 in riot-type gear, not all of whom had their shields
15 displayed, all being identified as Defendant Chei, Defendant
16 Fernandez, and Defendants John Does 1 thru 7.

17 25. PERKINS telephoned his girlfriend, Plaintiff PERRY,
18 who was at work and told her what was transpiring.

19 26. PERKINS was told, by one of the "John Doe" officers,
20 to open the door or, otherwise, the police would break it
21 down.

1 27. PERKINS, attempting to open the door, was unable to
2 open it fully as apparently the police had affixed a string
3 or rope to the outside door knob to prevent it from opening.

4 28. Opening it up partway, PERKINS was informed, by one or
5 more of the Defendant Officers, to put his hands above his
6 head and to open the door slowly, all being identified as
7 Defendant Chei, Defendant Fernandez, and Defendants John Does
8 1 thru 7.

9 29. Pulled out of the apartment, PERKINS was immediately
10 handcuffed behind his back, told to sit on the hallway floor,
11 and told to be quiet.

12 30. At no time was he informed as to why he was being
13 arrested.

14 31. As the officers entered the apartment, one or more of
15 the officers stated that they were there searching for a
16 firearm, all being identified as Defendant Chei, Defendant
17 Fernandez, and Defendants John Does 1 thru 7.

18 32. PERKINS, after the officers entered, asked to see a
19 search warrant, but was told that they did not have one.

20 33. Among the officers present was Defendant Lt. FNU Chei.

21 34. For approximately fifteen (15) or more minutes the
22 officers ransacked the apartment, upsetting furniture, books,
23 lamps, papers, clothing, etc., causing a terrible mess in the

1 residence, knowingly and intentionally destroying the per-
2 sonal property of Plaintiff PERRY. These acts were performed
3 by all being identified as Defendant Chei, Defendant Fernan-
4 dez, and Defendants John Does 1 thru 7.

5 35. The Defendant officers further looked in closets,
6 drawers, the refrigerator, and anywhere else that they could
7 apparently think of in order to find this supposed firearm.

8 36. After about fifteen (15) minutes, an officer appeared,
9 identified as an un-named Defendant Captain of the NYPD ("John
10 Doe").

11 37. The Captain then asked the Defendant Lt. FNU Chei if
12 the Defendant Officers had a warrant to enter and search the
13 premises, and, upon being told that they did not, the
14 Defendant officers were immediately told to vacate the apart-
15 ment.

16 38. At no time was Plaintiff PERKINS read his *Miranda*
17 rights, shown an arrest warrant, or shown a search warrant,
18 nor did he ever consent to the Defendant Police Officers
19 entering and searching the apartment.

20 39. At no time did Plaintiff PERKINS resist or otherwise
21 attempt to frustrate the Defendant Officers in their entry
22 and search of the apartment (as he was handcuffed and made to
23 sit outside the apartment when it was being searched).

1 40. At no time did the Plaintiff PERKINS consent to the
2 search of the apartment, either directly or indirectly.
3 Nevertheless, the Defendant Officers seized PERKINS mobile
4 phone and the case it was held in (clearly nor encompassed
5 within any definition of a search for a firearm).

6 41. Defendant Officer Fernandez then informed PERKINS that
7 he was not being charged with any offense, but still PERKINS,
8 engaging in no actions that constituted any sort of resistance
9 or confrontation, was kept handcuffed (*i.e.*, under arrest)
10 behind his back.

11 42. Although no firearm was discovered in the apartment
12 search, Plaintiff PERKINS was taken, still handcuffed, and
13 under arrest, to Housing Police Service Area 6, located at
14 2770 Frederick Douglas Blvd., in Manhattan.

15 43. After being held there, in a cell, for an extended
16 period of time, Plaintiff PERKINS was told that the Police
17 could not process his arrest as there were no formal charges
18 to be made against him.

19 44. Nevertheless, Plaintiff PERKINS was then transferred
20 to Central Booking, located at 100 Centre Street, New York,
21 NY (the Criminal Courts Building).

1 45. Once at Central Booking, after this extended period of
2 time, Plaintiff PERKINS was kept waiting, and was finally
3 brought to an empty courtroom at 100 Centre Street.

4 46. His name was then called, and he was immediately told
5 that he was free to go, with no charges ever presented against
6 him, no explanation for why he had been arrested and held for
7 more than a full day, and no apology for the unlawful and
8 unconstitutional behavior of the Defendants being offered to
9 him.

10 47. After being arrested and held for more than thirty
11 hours, PERKINS was finally released, on May 17, 2023, with no
12 charges preferred against him. See Exhibit A.

13 48. In further humiliation, and unlawful and tortious
14 conduct, after the complete search of the subject premises,
15 all that was seized was PERKINS' mobile phone and an accessory
16 to the phone – this seizure being made without any lawful
17 basis, and clearly unrelated to any search for a firearm.
18 See attached NYPD Property Voucher, Exhibit B.

19 49. Although PERKINS attempted to retrieve his phone and
20 the accessory on the day after his release (*i.e.*, on May 18,
21 2023), this demand was not complied with by the Defendants.

22 50. These seized items were not returned to the Plaintiff
23 PERKINS until a formal demand for their return was made to

1 the District Attorney's Office, Decline to Prosecute Unit, on
2 December 27, 2023.

3 51. On January 4, 2024, an email was received by Plaintiff
4 PERKINS' counsel, from the N.Y. County District Attorney's
5 Office, notifying him that the voucher for return of the
6 seized items was available for pickup, and the items would be
7 released (as their seizure in the first place was clearly
8 unlawful and unconstitutional) – almost eight months after
9 their unlawful seizure.

10 52. Although the NYPD Property Voucher lists two charges
11 (Criminal Possession of a Weapon and Criminal Possession of
12 a Firearm), Perkins was never formally charged or arraigned
13 on any offense, as no weapon, firearm, or anything of such
14 nature was discovered during the unauthorized and unconstitu-
15 tional search of the apartment, and was, therefore, released
16 as set forth above, with no charges made.

17 53. The NYPD Property Voucher lists two officers,
18 identified only by their "Tax No.", viz., "Arresting Officer"
19 971929, and "Supervisor" 946905, designated herein as POLICE
20 OFFICER "JOHN DOE" Tax No. 971929, and POLICE OFFICER "JOHN
21 DOE" Tax No. 946905.

1 54. Sometime in the afternoon of May 16, 2023 Plaintiff
2 PERRY arrived at her residence, the apartment involved here-
3 in.

4 55. PERRY was not allowed, by the Defendant NYPD officers
5 present, to re-enter her apartment until almost midnight on
6 the 16th of May, when she received a phone call from Defendant
7 Officer Fernandez.

8 56. By this time PERRY had rented a hotel room for the
9 night not knowing how long she and her daughter would be kept
10 out of her apartment.

11 57. When she arrived at her apartment there were several
12 police officers present. PERRY inquired of Defendant Officer
13 Fernandez if anything had been found as a result of the
14 search, and was informed that nothing had been found, and
15 Defendant Officer Fernandez then apologized for their
16 behavior.

17 58. Inspecting the apartment PERRY found the following
18 conditions:

19 The box containing her mother's remains had been
20 opened.

21 Food containers and wrappers had been opened, and
22 left that way.

1 Her daughter's room was a mess, with books strewn all
2 over.

3 Pictures were thrown all over the apartment.

4 Her designer shoes were on the floor and damaged.

5 Pictures were ripped out of their frames.

6 Furniture was over turned and in disarray.

7 59. As Plaintiff Perry stated in her 50-h Hearing,

8 All of my hard work belongings were upside down and
9 damaged. The mess I seen in there, I can't even
10 wrap my head around it but basically all my
11 belongings were on the floor all broken or I'm
12 stepping on something and I'm breaking it because
13 it's on the floor. I went into the kitchen, the
14 kitchen was a mess, cereal boxes open, just
15 everything was on the floor, all broke.
16

17 60. All of these actions having been done intentionally by
18 the Defendants, and without any justification, cause or
19 provocation, whatsoever, by the Plaintiffs.

20 61. It took Plaintiff PERRY, along with her fifteen-year-
21 old daughter, three full days to straighten out her apartment
22 and return it to some form of normalcy, even though some
23 property had been permanently damaged.

24 62. As a result of this unconstitutional violation of her
25 rights, PERRY now suffers from insomnia, as does her daughter,
26 along with other psychological issues and trauma.

63. PERRY also now suffers from serious emotional trauma, including insomnia, anxiety attacks, nervousness, panic attacks, and PTSD, out of a fear that at any time her home can be invaded by the NYPD without cause or justification, and Plaintiff PERKINS be arrested again without cause or justification; all as a result of the unlawful arrest of her common-law husband, Plaintiff Taikuan PERKINS.

64. Plaintiff PERRY is now, and continues to be, under the care of a mental health professional, as provided by her employer, who is treating her for this trauma.

65. As a result of this trauma the Plaintiff PERRY, who had resided in her apartment for many, many years, has been so traumatized that she and her family have been forced to consider moving to another location due to the memories of what took place on May 16, 2023.

CAUSE OF ACTION FIRST

PURSUANT TO 42 U.S.C. § 1983 FOR INDIVIDUAL DEFENDANTS' VIOLATIONS OF PLAINTIFFS' RIGHTS UNDER THE FOURTH AMENDMENT TO BE FREE FROM FALSE ARREST

66. Plaintiffs repeat, re-iterate, and incorporate herein ¶¶ 1 through 65 as if set forth herein.

67. The Individual Defendants willfully and intentionally seized, searched, detained, and arrested Plaintiff PERKINS,

1 and caused him to be imprisoned, without probable cause, and
2 without a reasonable basis to believe such cause existed.

3 68. Upon entering the apartment the Defendants handcuffed
4 PERKINS, and made him sit on the hallway floor.

5 69. No probable cause, or other exigent circumstances
6 existed for this action by the Defendants.

7 69. This constituted an unlawful and false arrest under
8 the federal Constitution. *People v. Blanding*, 116 A.D.3d
9 498, 499 (1st Dep't 2014).

10 69. PERKINS was never told for what he was being arrested.

11 70. Plaintiff had not been engaged in any criminal conduct,
12 nor was he engaged in any conduct that could reasonably be
13 viewed as criminal nor a basis to justify his arrest.

14 71. Despite the absence of sufficient legal cause, Plain-
15 tiff was arrested and jailed and held in custody for more
16 than a full day.

17 72. By so doing, the Individual Defendants subjected
18 Plaintiff to false arrest and imprisonment, and thereby
19 violated and aided and abetted in the violation of Plaintiff's
20 rights under the Fourth Amendment of the United States Con-
21 stitution. See *Pitchell v. Callan*, 13 F.3d 545, 547 (2d Cir.
22 1994).

1 73. By reason thereof, the Individual Defendants have
2 violated 42 U.S.C § 1983 and caused Plaintiff to suffer the
3 deprivation of his liberty, loss of his constitutional
4 rights, physical injuries, and mental anguish.

5 74. That as a result of the foregoing, Plaintiff has been
6 damaged in a sum exceeding the jurisdictional limits of all
7 lower courts that would otherwise have jurisdiction over this
8 matter.

9 **CAUSE OF ACTION SECOND**

10 **PURSUANT TO 42 U.S.C. § 1983 FOR INDIVIDUAL DEFENDANTS'**
11 **VIOLATIONS OF PLAINTIFF PERKINS RIGHTS UNDER THE FOURTH**
12 **AMENDMENT TO BE FREE FROM EXCESSIVE FORCE**

13
14 75. Plaintiff repeats, re-iterates, and incorporates
15 herein ¶¶ 1 through 74 as if set forth herein.

16 76. As a result of the Defendants' conduct, Plaintiff was
17 subjected to excessive force, as he was handcuffed behind his
18 back, made to sit on the floor of the apartment building for
19 an excessive period of time, and held in unlawful and irre-
20 sponsible conditions before finally being released.

21 77. During Plaintiff PERKIN's 50-h Hearing he testified as
22 follows,

23 the handcuffs ripped into my skin, my shoulder,
24 going through a lot. My shoulder had some damage
25 and they denied that the handcuffs did that, that
26 is about it.
27

1 78. Such injuries merit an excessive force Cause of Action.
2 See *Murray v. City of New York*, 154 A.D.3d 591, 592 (1st Dep't
3 2017).

4 79. By reason, thereof, the Individual Defendants violated
5 42 U.S.C. § 1983 and caused Plaintiff to suffer the depriva-
6 tion of his liberty, loss of his constitutional rights,
7 physical injuries, and mental anguish. See *Pitchell v.*
8 *Callan*, 13 F.3d 545, 547 (2d Cir. 1994).

9 80. As a result of Defendant's conduct, the Plaintiff is
10 entitled to compensatory and punitive damages, as well as
11 injunctive and declaratory relief.

12 81. That as a result of the foregoing, Plaintiff has been
13 damaged in a sum exceeding the jurisdictional limits of all
14 lower courts that would otherwise have jurisdiction over this
15 matter.

16 **CAUSE OF ACTION THIRD**

17 **SECTION 1983 MONELL CLAIM AGAINST THE MUNICIPAL DEFENDANTS,**
18 **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**
19

20 82. Plaintiff repeats, re-iterates, and incorporates
21 herein §§ 1 through 81 as if set forth herein.

22 83. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE
23 DEPARTMENT ("NYPD") were responsible for ensuring that rea-

1 sonable and appropriate levels of supervision were in place
2 within and/or over the NYPD.

3 84. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE
4 DEPARTMENT had actual or constructive knowledge that there
5 was inadequate supervision over and/or within the NYPD with
6 respect to its members' abuse of their authority, abuse of
7 arrest powers, fabrication of evidence, and other blatant
8 violations of the United States and N.Y.S. Constitutions and
9 the rules and regulations of the NYPD.

10 85. Despite ample notice of inadequate supervision,
11 Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPART-
12 MENT took no steps to ensure that reasonable and appropriate
13 levels of supervision were put in place to reasonably ensure
14 that NYPD members engaged in police conduct in a lawful and
15 proper manner, including their use of their authority as law
16 enforcement officers with respect to the general public,
17 including, and specifically, the Plaintiffs PERKINS and PERRY
18 herein.

19 86. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE
20 DEPARTMENT deliberately and intentionally chose not to take
21 action to correct the chronic, systemic, and institutional
22 misuse and abuse of police authority by its NYPD employees,
23 and thereby deliberately and intentionally adopted, condoned,

1 and otherwise created through deliberate inaction and negli-
2 gent supervision, an NYPD policy, practice, and custom of
3 utilizing illegal and impermissible searches, arrests, and
4 detentions, in the ordinary course of NYPD business in fla-
5 grant disregard of the state and federal constitutions, as
6 well as the Patrol Guide, up to and beyond the Plaintiff
7 PERKIN's arrest, and Plaintiff PERRY's residence search.

8 87. The acts complained of herein are a direct and proxi-
9 mate result of the failure of the Defendants CITY OF NEW YORK
10 and NEW YORK CITY POLICE DEPARTMENT properly to select, train,
11 supervise, investigate, promote and discipline police and
12 correction officers and supervisory officers. See *Fraser v.*
13 *City of New York, et al.*, 20-cv-04926-CM-OTW (S.D.N.Y.).

14 88. The failure of the Defendants CITY OF NEW YORK and NEW
15 YORK CITY POLICE DEPARTMENT properly to select, train, super-
16 vise, investigate, promote and discipline police and correc-
17 tion officers and supervisory officers constitutes gross and
18 deliberate indifference to unconstitutional conduct by those
19 officers.

20 89. The official policies, practices and customs of the
21 Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPART-
22 MENT, alleged herein, violated Plaintiffs' rights guaranteed
23 by 42 U.S.C. § 1983, the Fourth and Fourteenth Amendments to

1 the Constitution of the United States. See generally *Johnson*
2 *v. Paul*, 2018 U.S. Dist. LEXIS 84974 (S.D.N.Y. 2018).

3 90. All of the acts and omissions by the Individually
4 identified Defendants, described above, were carried out pur-
5 suant to overlapping policies and practices of the municipal
6 Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPART-
7 MENT in their capacities as police officers and officials
8 pursuant to customs, policies, usages, practices, procedures,
9 and rules of the City and the NYPD, all under the supervision
10 of ranking officers of the NYPD.

11 91. Therefore, the municipal Defendants CITY OF NEW YORK
12 and NEW YORK CITY POLICE DEPARTMENT have not only tolerated,
13 but actively fostered, a lawless atmosphere within the NYPD
14 and that the City of New York was deliberately indifferent to
15 the risk that the inadequate level of supervision would lead
16 to the violation of individuals' constitutional rights in
17 general, and caused the violation of the Plaintiff's rights
18 in particular

19 92. That as a result of the foregoing, Plaintiff has been
20 damaged in a sum exceeding the jurisdictional limits of all
21 lower courts that would otherwise have jurisdiction over this
22 matter.

CAUSE OF ACTION FOURTH

**CIVIL RIGHTS VIOLATIONS PURSUANT TO NEW YORK STATE LAW BY
DEFENDANTS AS TO PLAINTIFF PERKINS**

93. Plaintiff repeats, re-iterates, and incorporates herein ¶¶ 1 through 92 as if set forth herein.

97. Plaintiff PERKINS was subjected to false arrest, excessive force, malicious prosecution, denial of due process and fair trial, through the Defendants', upon information and belief, use of unfounded allegations, failure to investigate, and, upon information and belief, the making of, and reliance upon, false statements.

98. At no time did Defendants have any legal basis for arresting Plaintiff PERKINS, subjecting him to prosecution, or commencing criminal process against them, nor was there any reasonable basis to believe said conduct, set forth herein, was lawful, reasonable, or otherwise appropriate.

99. The Defendants are therefore liable under applicable New York law to Plaintiff PERKINS for false arrest and imprisonment, malicious prosecution, denial of due process and fair trial, and excessive force.

100. That as a result of the foregoing, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of all

1 lower courts that would otherwise have jurisdiction over this
2 matter.

3 **CAUSE OF ACTION FIFTH**

4 ***Monell* Claim as Against Defendants CITY OF NEW YORK, and**
5 **NEW YORK CITY POLICE DEPARTMENT as Against Plaintiffs**
6 **PERKINS and PERRY**

7
8 98. Plaintiff repeats, re-iterates, and incorporates
9 herein ¶¶ 1 through 97 as if set forth herein.

10 99. That on all the above occasions the Defendants CITY OF
11 NEW YORK and NEW YORK CITY POLICE DEPARTMENT ("NYPD"), their
12 agents, servants and employees in their failure to hire,
13 train, supervise and discipline or in any other way control
14 the Defendants in their exercise of their functions to enforce
15 the law of the State and City of New York, did act willfully,
16 wantonly, maliciously and with such reckless disregard for
17 the consequences as to display a conscious disregard for the
18 dangers of harm and injury to the citizens of the State of
19 New York including, in this instance, the Plaintiffs. *City*
20 *of Canton, Ohio v. Harris*, 489 U.S. 378 (1989).

21 100. That the Defendants CITY OF NEW YORK and NEW YORK CITY
22 POLICE DEPARTMENT were careless and reckless in hiring and
23 retaining, as and for its employees, the above Defendants
24 POLICE OFFICER LIEUTENANT FNU CHEI, POLICE OFFICER FNU
25 FERNANDEZ, POLICE OFFICER "JOHN DOE 1" Tax No. 971929, POLICE

1 OFFICER "JOHN DOE 2" Tax No. 946905, POLICE OFFICERS JOHN
2 DOES 3 thru 7 in that the said Defendants lacked the
3 experience department and ability to be employed by the
4 Defendant; in that the Defendant failed to exercise due care
5 and caution in its hiring practices, and in particular, in
6 hiring the Defendant employees who lacked the mental capacity
7 and the ability to function as an employee of the afore-
8 mentioned Defendants CITY OF NEW YORK and NEW YORK CITY POLICE
9 DEPARTMENT; in that Defendants POLICE OFFICER LIEUTENANT FNU
10 CHEI, POLICE OFFICER FNU FERNANDEZ, POLICE OFFICER "JOHN DOE
11 1" Tax No. 971929, POLICE OFFICER "JOHN DOE 2" Tax No. 946905,
12 POLICE OFFICERS JOHN DOES 3 thru 7 background and in that
13 they hired and retained as an employee of their police depart-
14 ment individuals whose backgrounds contained information
15 (based upon their actions as set forth herein) that revealed
16 said Defendant individuals lacked the maturity, sensibility,
17 and intelligence to be employed by the Defendant; in that the
18 Defendants knew of the lack of ability, experience, depart-
19 ment and maturity of said Defendant employee when they hired
20 him/her to be an employee; and, in that the Defendants CITY
21 OF NEW YORK and NEW YORK CITY POLICE DEPART-MENT, their
22 agents, servants and employees were otherwise careless,
23 wantonly negligent, and reckless.

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108 Village Sq., Ste. 313
Somers, NY 10589-2305

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1 101. That the aforesaid occurrence, to wit: the false
2 arrest and imprisonment of Plaintiff PERKINS, and damage to
3 the personal possessions of the Plaintiff PERRY, resulting
4 in injuries to mind and body and property therefrom, were
5 caused wholly and solely by reason of the negligence of the
6 Defendants CITY OF NEW YORK and NEW YORK CITY POLICE
7 DEPARTMENT, their agents, servants, and employees without any
8 negligence on the part of Plaintiffs named herein.

9 102. That the acts of the Defendants, their agents,
10 servants and employees, in failing to properly discipline
11 hire and train their employees, agents, and servants presents
12 a clear and present danger to the citizens of the City and
13 State of New York.

14 103. That by reason of the aforesaid, the Plaintiffs have
15 been injured in mind and body, still suffer and, upon
16 information and belief, will continue to suffer great mental
17 pain by the actions of the Defendants CITY OF NEW YORK and
18 NEW YORK CITY POLICE DEPARTMENT, their agents, servants and
19 employees.

20 104. The Defendants are therefore liable under New York
21 law to Plaintiff PERKINS and Plaintiff PERRY for false arrest
22 and imprisonment, denial of due process and fair trial, and

1 excessive force, unlawful entry, and damage to property and
2 life and limb.

3 105. That as a result of the foregoing, Plaintiffs have
4 been damaged in a sum exceeding the jurisdictional limits of
5 all lower courts that would otherwise have jurisdiction over
6 this matter.

7 **CAUSE OF ACTION SIXTH**

8 **ON BEHALF OF PLAINTIFF PERRY FOR NEGLIGENT INFLECTION OF**
9 **EMOTIONAL DISTRESS AS AGAINST THE DEFENDANTS**
10

11 106. Plaintiff repeats, re-iterates, and incorporates
12 herein ¶¶ 1 through 105 as if set forth herein.

13 107 Plaintiff PERRY is entitled to recover for extreme or
14 outrageous conduct from which the Plaintiff suffered some
15 mental trauma or injury, due to the Defendants' violation of
16 some duty owed to the Plaintiff. *Taggart v. Costabile*, 131
17 A.D.3d 243, 253-55 (2d Dep't 2015).

18 108. That the Defendant Police negligently, knowingly,
19 recklessly arrested Plaintiff PERKINS when they knew he did
20 not commit any crimes and engaged in conduct that is not
21 expected or to be tolerated in a civilized society.

22 109. That the Defendant Police negligently, and knowingly,
23 unlawfully entered into the residence of the Plaintiff
24 PERKINS when they knew they had no lawful right to do so, and

1 further prevented her from re-entering her residence for an
2 entire day, when no legal cause or justification for doing so
3 existed, engaging in conduct that is not expected, or to be
4 tolerated, in a civilized society.

5 110. That such conduct shocks the conscience and Plaintiff
6 PERRY demands damages therefrom.

7 111. That due to Defendants' conduct, the Plaintiff was
8 injured in mind and body, still suffers and, upon information
9 and belief, will continue to suffer great mental pain, and
10 she was rendered emotionally and mentally distressed and so
11 remains, and continues to receive assistance and aid from a
12 mental health professional due to such trauma.

13 112. That as a result of the foregoing, Plaintiff has been
14 damaged in a sum exceeding the jurisdictional limits of all
15 lower courts that would otherwise have jurisdiction over this
16 matter.

17 **CAUSE OF ACTION SEVENTH**

18 **ON BEHALF OF PLAINTIFF PERRY FOR INTENTIONAL INFLECTION OF**
19 **EMOTIONAL DISTRESS AS AGAINST THE DEFENDANTS**

20
21 113. Plaintiff repeats, re-iterates, and incorporates
22 herein ¶¶ 1 through 112 as if set forth herein.

23 114. Under New York law, a cause of action alleging
24 intentional infliction of emotional distress has four ele-

1 ments: (i) extreme and outrageous conduct; (ii) intent to
2 cause, or disregard of a substantial probability of causing,
3 severe emotional distress; (iii) a causal connection between
4 the conduct and injury; and (iv) severe emotional distress.
5 *Brown v. N.Y. Design Center, Inc.*, 215 A.D.3d 1, 6 (1sr Dep't
6 2023) .

7 115. That due to the Defendants' actions, and Police's
8 outrageous, unjustified and unlawful conduct, Plaintiff was
9 injured in mind and body, still suffers and, upon information
10 and belief, will continue to suffer great mental pain and
11 suffering, caused by the actions of the Police.

12 116. That the Police intentionally, knowingly, and reck-
13 lessly caused Plaintiff PERRY's common-law husband to be
14 arrested for a crime they knew he did not commit and engaged
15 in conduct that is not expected or to be tolerated in a
16 civilized society.

17 117. That the Police intentionally, knowingly, and
18 recklessly prevented Plaintiff PERRY from re-entering her
19 apartment for almost a full day, and when she did, she
20 discovered it in such a state of disorder as to cause her
21 mental anguish and pain.

22 118. The outrageous conduct of the Police clearly demon-
23 strates their intent to cause harm, both physiological and

1 psychological to the Plaintiff PERRY, and such intent can be
2 inferred from the aforesaid conduct. See *Novack v. Sisters*
3 *of the Heart of Mary*, 210 A.D.3d 1104, 1105-06 (2d Dep't
4 2022).

5 119. That such conduct shocks the conscious and Plaintiff
6 demands damages therefrom.

7 120. That Plaintiff PERRY has suffered the mental trauma
8 and harm as set forth herein (see ¶¶ 62 thru 65 *supra*; see
9 also Plaintiff PERRY's 50-h Hearing at pp. 32-33).

10 121. That the arrest and invasion of PERRY's home went
11 beyond what is considered reasonable and tolerable in a
12 civilized society and shocks the conscious of the ordinary
13 citizen. Plaintiff was injured in mind and body, still suffers
14 and upon information and belief, will continue to suffer great
15 mental pain, and he was rendered emotionally and mentally
16 distressed and so remains; and, as a result thereof, has
17 sought the assistance of a mental health professional to deal
18 with this outrageous conduct.

19 122. That as a result of the foregoing, Plaintiff has been
20 damaged in a sum exceeding the jurisdictional limits of all
21 lower courts that would otherwise have jurisdiction over this
22 matter.

1 CAUSE OF ACTION EIGHTH

2 ON BEHALF OF PLAINTIFFS N.Y.S. CONSTITUTION, ART. I, § 12,
3 AND N.Y. CIVIL RIGHTS LAW § 8 AS AGAINST THE DEFENDANTS

4
5 123. Plaintiff repeats, re-iterates, and incorporates
6 herein ¶¶ 1 through 122 as if set forth herein.

7 124.

8 The right of the people to be secure in their
9 persons, houses, papers and effects, against
10 unreasonable searches and seizures, shall not be
11 violated, and no warrants shall issue, but upon
12 probable cause, supported by oath or affirmation,
13 and particularly describing the place to be
14 searched, and the persons or things to be seized.

15 N.Y. State Constitution, art. I, § 12.

16 See also N.Y. Civil Rights L. § 8.

17 125. Plaintiff PERKINS was subjected to false arrest and
18 imprisonment, and excessive force based upon the warrantless
19 and unwarranted behavior of the Defendants.

20 126. Plaintiff PERRY was subjected to unlawful and
21 unconstitutional invasion of her home, in a warrantless
22 action by the Defendants that both denied her access to her
23 home, and resulted in the destruction of her personal
24 property.

25 127. At no time did Defendants have any legal basis for
26 arresting Plaintiff PERKINS or entering the home of Plaintiff
27 PERRY, nor was there any reasonable basis to believe that

1 either Plaintiff engaged in any conduct that would have made
2 such actions on the part of the Defendants unlawful.

3 128. The Defendants' actions constituted knowing viola-
4 tions of both the New York State Constitution, art. I, § 12,
5 and N.Y. Civil Rights L. § 8, and as such, are therefore
6 liable under New York law to Plaintiffs for false arrest and
7 unlawful entry.

8 129. That as a result of the foregoing, Plaintiff has been
9 damaged in a sum exceeding the jurisdictional limits of all
10 lower courts that would otherwise have jurisdiction over this
11 matter.

12 **CAUSE OF ACTION NINTH**

13 **CONVERSION ON BEHALF OF PLAINTIFF PERKINS**
14 **AS AGAINST THE DEFENDANTS**
15

16 130. Plaintiff repeats, re-iterates, and incorporates
17 herein ¶¶ 1 through 129 as if set forth herein.

18 131. The three key elements of conversion are the Plain-
19 tiff's: (1) legal ownership or an immediate superior right of
20 possession to a specific identifiable thing, (2) the
21 defendant's unauthorized dominion over the thing in question
22 or interference with it, to the exclusion of the plaintiff's
23 right, and (3) a demand for its return and a refusal. Nero

1 v. *Fiore*, 165 A.D.3d 823, 825 (2d Dep't 2018); *Matter of Asch*,
2 164 A.D.3d 787, 789 (2d Dep't 2018).

3 132. When the Defendant police officers entered the
4 premises, they seized both the cell phone and its case from
5 the Defendant PERKINS.

6 133. This was done without any lawful authority, the
7 Plaintiff's permission, or grounded in any lawful action.

8 134. The day that Plaintiff PERKINS was released from
9 Criminal Court he went to the precinct where the Defendant
10 Police officers had come, *i.e.*, Police Service Area 6, located
11 at 2770 Frederick Douglass Boulevard, New York, NY 10039.

12 135. There he demanded the return of his property, and it
13 was refused, even though no lawful basis existed for it to be
14 held from him.

15 136. For this action of conversion, on the Defendants'
16 part, Plaintiff PERKINS demands judgment in his favor.

17 137. That as a result of the foregoing, Plaintiff has been
18 damaged in a sum exceeding the jurisdictional limits of all
19 lower courts that would otherwise have jurisdiction over this
20 matter.

CAUSE OF ACTION TENTH

**MALICIOUS MISCHIEF AS THE INTENTIONAL DESTRUCTION OF
PROPERTY ON BEHALF OF PLAINTIFF PERRY AS AGAINST THE
DEFENDANTS**

138. Plaintiff repeats, re-iterates, and incorporates herein ¶¶ 1 through 137 as if set forth herein.

139. Malicious mischief has been defined [as] 'the wilful injury or destruction of property from ill will toward its owner or from mere wanton-ess'. * * * Malice does not necessarily mean hatred. It may be inferred from unjustifiable conduct. In a legal sense, it means a wrongful act, done intentionally, without just cause or excuse.

Roselli v. Royal Ins. Co., 142 Misc.2d 857, 858 (S. Ct. Monroe Co. 1989).

140. Willful and wanton negligence has been declared to be acting consciously in disregard of another person's rights or acting with reckless indifference to the consequences, with the defendant aware, from his or her knowledge of existing circumstances and conditions, that the defendant's conduct probably would cause injury to another.

Lee v. Verstraete, 65 Misc.3d 531, 535 (S. Ct. Wayne Co. 2019).

141. The Defendant Police Officers named herein, POLICE OFFICER LIEUTENANT FNU CHEI, POLICE OFFICER FNU FERNANDEZ, POLICE OFFICER "JOHN DOE 1" Tax No. 971929, POLICE OFFICER "JOHN DOE 2" Tax No. 946905, POLICE OFFICERS JOHN DOES 3 thru 7, entered the residence of the Plaintiff PERRY without consent or lawful permission.

1 142 Upon their entry they proceeded to search the residence,
2 without a warrant.

3 143. In the course of said search, among the following
4 damages were found,

5 The box containing her mother's remains had been
6 opened.

7 Food containers and wrappers had been opened, and
8 left that way.

9 Her daughter's room was a mess, with books strewn all
10 over.

11 Pictures were thrown all over the apartment.

12 Her designer shoes were on the floor and damaged.

13 Pictures were ripped out of their frames.

14 Furniture was over turned and is disarray.

15 144. Subsequent to the unlawful search, it took the
16 Plaintiff PERRY and her daughter several days to bring her
17 residence back to its original state.

18 145. These actions of the Defendant Police Officers
19 constituted malicious mischief, a wanton disregard for the
20 personalty of a resident, showed a reckless disregard for the
21 property of others, and was totally inexcusable.

22 146. That as a result of the foregoing, Plaintiff has been
23 damaged in a sum exceeding the jurisdictional limits of all

1 lower courts that would otherwise have jurisdiction over this
2 matter.

3 WHEREFORE, Plaintiff demands judgment against the
4 Defendants, jointly and severally, as follows:

5 a. On the First Cause of Action, damages in an amount
6 exceeding the jurisdictional limits of all lower
7 courts that would otherwise have jurisdiction over
8 this matter;

9 b. On the Second Cause of Action, damages in an amount
10 exceeding the jurisdictional limits of all lower
11 courts that would otherwise have jurisdiction over
12 this matter;

13 c. On the Third Cause of Action, damages in an amount
14 exceeding the jurisdictional limits of all lower
15 courts that would otherwise have jurisdiction over
16 this matter;

17 d. On the Fourth Cause of Action, damages in an amount
18 exceeding the jurisdictional limits of all lower
19 courts that would otherwise have jurisdiction over
20 this matter;

21 e. On the Fifth Cause of Action, damages in an amount
22 exceeding the jurisdictional limits of all lower

1 courts that would otherwise have jurisdiction over
2 this matter;

3 f. On the Sixth Cause of Action, damages in an amount
4 exceeding the jurisdictional limits of all lower
5 courts that would otherwise have jurisdiction over
6 this matter;

7 g. On the Seventh Cause of Action, damages in an amount
8 exceeding the jurisdictional limits of all lower
9 courts that would otherwise have jurisdiction over
10 this matter;

11 h. On the Eighth Cause of Action, damages in an amount
12 exceeding the jurisdictional limits of all lower
13 courts that would otherwise have jurisdiction over
14 this matter;

15 i. On the Ninth Cause of Action, damages in an amount
16 exceeding the jurisdictional limits of all lower
17 courts that would otherwise have jurisdiction over
18 this matter;

19 j. On the Tenth Cause of Action, damages in an amount
20 exceeding the jurisdictional limits of all lower
21 courts that would otherwise have jurisdiction over
22 this matter;

23 k. Interest, costs and disbursements of this action;

- 1 l. Punitive damages, in an amount to be determined at
2 trial;
- 3 m. Both Pre-judgment and Post-Judgment Interest at the
4 statutory rate;
- 5 n. For all legal fees and costs and disbursements of this
6 Action, pursuant to the Equal Access to Justice Act,
7 CPLR art. 86;
- 8 o. For all reasonable attorney fees, costs and disburse-
9 ments, pursuant to 42 U.S.C. § 1988(b), (c); and
- 10 p. For such other further relief as this Court shall deem
11 just and proper.

12 Dated: March 13, 2024
13 Somers, NY

**Bernard
Kleinman**

Digitally signed by Bernard
Kleinman
DN: cn=Bernard Kleinman,
o=Law Office of Bernard V
Kleinman, ou,
email=attrnylwyr@yahoo.com,
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Bernard V. Kleinman, Esq.
LAW OFFICE OF
BERNARD V. KLEINMAN, PLLC
Attorney for Plaintiffs PERKINS &
PERRY
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Email: attrnylwyr@yahoo.com

26 To: City of New York
27 c/o Law Department of the City of New York
28 100 Church Street
29 New York, NY 10007
30
31 New York City Police Department
32 c/o Law Department of the City of New York
33 100 Church Street

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1 New York, NY 10007
2
3 Lt. FNU CHEI
4 Police Service Area 6
5 2770 Frederick Douglass Boulevard
6 New York, NY 10039
7
8 Policed Officer FNU FERNANDEZ
9 Police Service Area 6
10 2770 Frederick Douglass Boulevard
11 New York, NY 10039
12
13 POLICE OFFICER "JOHN DOE" Tax No. 971929
14 Police Service Area 6
15 2770 Frederick Douglass Boulevard
16 New York, NY 10039
17
18 POLICE OFFICER "JOHN DOE" Tax No. 946905
19 Police Service Area 6
20 2770 Frederick Douglass Boulevard
21 New York, NY 10039
22
23 POLICE OFFICERS 1 thru 7
24 Police Service Area 6
25 2770 Frederick Douglass Boulevard
26 New York, NY 10039
27
28
29

ATTORNEY'S VERIFICATION

[C.P.L.R. § 3020(d)(3)]

The undersigned, an attorney admitted to practice in the Courts of the State of New York, shows that:

Affirmant is the attorney of record for Plaintiffs in the within action; Affirmant has read the foregoing VERIFIED COMPLAINT and knows the contents thereof to be true to Affirmant's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, Affirmant believes those matters to be true.

The grounds of Affirmant's belief as to all matters not stated upon his knowledge are based upon information contained in the file maintained in Affirmant's office, interviews and all contacts with the named Plaintiff, who related all of the foregoing, or upon Plaintiff's information and belief. This verification is made by Affirmant and not by the Plaintiffs because the Plaintiffs reside outside the County wherein Affirmant maintains his office.

The undersigned affirms that the foregoing statements are true, under the pains and penalties of perjury under the laws of the State of New York.

Dated: Somers, NY
March 13, 2024

**Bernard
Kleinman**

Digitally signed by Bernard Kleinman
DN: cn=Bernard Kleinman, o=Law
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email=attmlywyr@yahoo.com, c=US
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Bernard V. Kleinman
Attorney-at-Law

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Somers, NY 10589-2305

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POLICE DEPARTMENT

Date

05/17/2023

TO WHOM IT MAY CONCERN:

The New York City Police Department has been notified that the New York County District Attorney's Office has declined to prosecute charges against the individual listed below:

Name:

Taikaan Perkins

Date of Birth:

10/14/1984

Arrest Number:

1120620277

Date of Arrest:

05/17/2023

Please refer all further inquiries to the New York County District Attorney's
Decline to Prosecute Unit (212) 335-9884.



NYPD Property Clerk Invoice

PD 521-141(Rev.12/18)



Invoice No. 1001644815

Invoicing Command

HOUSING PSA 6

Invoice Status

OPEN

Invoice Date

05/17/2023

Property Type

GENERAL PROPERTY

Property Category

INVESTIGATORY

Officers	Rank	Name	Tax No.	Command	
Invoicing Officer			971929	HOUSING PSA 6	OCME.EU No.
Arresting Officer			971929	HOUSING PSA 6	OCME.FB No.
Investigating Officer					Police Lab Evid.Ctrl.No.
Det Squad Supervisor					Det Sqd. Case No.
CSU/ECT Processing					CSU/ECT Run No.

Item	Total QTY	Article(s)	Estimated Value	Pkg. No.	QTY	Disposition
1	1	CELL PHONE COLOR: BLACK MAKE: I PHONE IMEI: 356856117152293 DESCRIPTION: DEFENDANT ACKNOWLEDGES VOUCHER AND HAS BEEN GIVEN RECEIPT FOR HIS BELONGINGS. VOUCHER SCREEN HAS MINOR SCRATCHES, THE BACK OF THE PHONE HAS MINOR SCRATCHES. DAMAGE/DEFACEMENT DESCRIPTION: MINOR SCRATCHES TO FRONT SCREEN AND BACK OF THE PHONE		1205026636	1	
2	1	OTHER ACCESSORY COLOR: BLACK MAKE: NIUKIN DESCRIPTION: DEFENDANT ACKNOWLEDGES VOUCHER AND HAS BEEN GIVEN RECEIPT FOR HIS BELONGINGS. BLACK PHONE CASE.		1205026636	1	
Total Cash Value			0.00			

REMARKS

971929 05/17/2023 02:51 : Investigatory in connection with the above arrest

946905 05/17/2023 03:15 : Supervisor - THE ABOVE IS BEING VOUCHERED AS INVESTIGATORY PROP.

946905 05/17/2023 03:15 : Invoice Approved By 946905

Date of Incident	Penal Code/Description	Crime Classification	Related To	Receipt
05/16/2023	26501/CRIM POSS WEAPON	FELONY		
05/16/2023	CRIMINAL POSSESSION FIREARM	FELONY	N/A	N/A

Prisoner(s) Name	D.O.B	Age	Address	Arrest No./Summons No.	NYSID No.
1 PERKINS, TAIKUAN	10/14/1984	38	2931 8 AVENUE 14F NEW YORK, NY	M23620273	09766111Z

Complaint No. 2023-032-002967

Related Comp No.(s) N/A

Aided/Accident No.(s) N/A

Related Invoice(s) N/A



Invoice No. 1001644815

Prisoner/ Finder/ Owner Copy
printed: 05/18/2023 10:38

PCD Storage No.

Page No.1 of 4

[EXHIBIT B]



NYPD Property Clerk Invoice

PD 521-141 (Rev. 12/18)



Invoice No. 1001644815

Approvals	Rank	Name	Tax No.	Command	Date	Time
Entered By			971929	HOUSING PSA 6	05/17/2023	02:51
Invoicing Officer			971929	HOUSING PSA 6	05/17/2023	03:01
Approved By			946905	HOUSING PSA 6	05/17/2023	03:15
Approved By			946905	HOUSING PSA 6	05/17/2023	03:15



Invoice No. 1001644815

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PCD Storage No.

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[EXHIBIT B]

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NYPD Property Clerk Invoice

PD 521-141 (Rev.12/18)



Invoice No. 1001644815

NOTICE TO PERSONS FROM WHOM PROPERTY HAS BEEN REMOVED BY THE POLICE DEPARTMENT

The person from whose possession property was taken should retain and safeguard the invoice. The New York City Police Department can change the Invoice Category without further notice. In order to obtain the return of property, the claimant or a representative authorized by a **notarized letter** to claim the property will be required to submit, in person or by mail, the Invoice and **proper identification** (one (1) government issued photo identification plus at least one (1) non-photo identification) to the office of the Property Clerk. A claimant demanding the return of property other than Arrest Evidence, DNA Evidence or Forfeiture does not require a District Attorney's Release and may make such demand whether or not criminal proceedings have been instituted and, if instituted, whether or not such proceedings have been terminated.

ARREST EVIDENCE/DNA EVIDENCE/FORFEITURE

The property may be disposed of by the Property Clerk according to law, unless the claimant demands the property no later than **120 days** after the termination of criminal proceedings. A claimant demanding the return of arrest evidence/DNA evidence/forfeiture from the Property Clerk should obtain, before making a demand, either a District Attorney's Release or a Supervising District Attorney's statement refusing to grant a release. Presentation of either or both of these documents to the Property Clerk is **NOT** required for making a timely demand. If a demand for the property is made without a District Attorney's Release or a Supervising District Attorney's statement, the claimant shall have **270 days** from the date of demand to obtain a District Attorney's Release or a Supervising District Attorney's statement refusing to grant a release. If a release or a statement refusing to grant a release is not provided to the Property Clerk within **270 days** of the date of demand, the property may be disposed of according to law. If a claimant timely provides the Property Clerk with a District Attorney's statement refusing to grant a release, the claimant must, when the District Attorney no longer needs the property, obtain and submit a District Attorney's Release to the Police Department. Forfeiture property may additionally require a Civil Enforcement Release prior to release.

INVESTIGATORY/DNA INVESTIGATORY

Investigatory property is disposed of after **one (1) year**, unless otherwise requested by the Investigating officer.

DECEDENT'S PROPERTY

LETTERS TESTAMENTARY or LETTERS OF ADMINISTRATION obtained from the Surrogate Court of the decedent's county of residence are required for release.

FOUND PROPERTY

Pursuant to law, found property will be held for the following periods of time (unless sooner delivered to owner):

- a. Property having a value of less than \$100 — **3 months**
- b. Property having a value of \$100 but less than \$500 — **6 months**
- c. Property having a value of \$500 but less than \$5000 — **1 year**
- d. Property having a value of \$5000 or more — **3 years**

SAFEKEEPING

Property held for Safekeeping must be claimed within **120 days** from the date it was invoiced. After **120 days**, property will be disposed of as per applicable NYC Law. All firearms, rifles, and shotguns, invoiced for safekeeping must be reclaimed by the owner within **one (1) year** of the date of invoice. After the expiration of **one (1) year**, the firearm, rifle, or shotgun will be disposed of by the Property Clerk pursuant to law, without further notice.

PEDDLER PROPERTY

Peddler property that is deemed trademark counterfeit, and classified found/abandoned property will be destroyed on intake. All other Peddler Property is held for a period of **90 days**. A claimant that demands the return of his/her peddler property must obtain a letter from the NYPD Law department stating the property can be released and:

- a. A claimant that was issued an Environmental Control Board summons must obtain a decision and order sheet from ECB.
- b. A claimant that was issued a Criminal Court summons or was arrested must obtain a court disposition sheet in order to obtain his/her peddler property.

Please bring this receipt with you when you are notified to appear to claim the property. For information concerning property which you delivered to this Department, please call the Property Clerk's office in the borough in which the property was turned in. The Property Clerk offices are located at:

MANHATTAN	1 Police Plaza	646-610-5906
BRONX	215 East 161 St.	718-590-2806
BROOKLYN	11 Front Street	718-624-5364
QUEENS	47-08 Austell Place	718-433-2678
STATEN ISLAND	1 Edgewater Plaza	718-876-8413
PEARSON PLACE WAREHOUSE	47-15 Pearson Place	718-361-1021

***Bank Cards/Checks will only be issued between the hours of 9:00 AM and 2:30 PM**

If vehicle is involved, contact the following:

SPRINGFIELD GARDENS AUTO POUND

174-20 North Boundary Road, Queens, NY

718-553-9555

For more information visit the Property Clerk Division's website:

http://www.nyc.gov/html/nypd/html/property_clerk/property_clerk.shtml



Invoice No. 1001644815

Prisoner/ Finder/ Owner Copy
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PCD Storage No.

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